

CHAPTER 27.

An Act to prevent the conversion of entailed interests into absolute interests and the destruction of interests expectant thereon by the statutory trusts for sale, and to define the expression "rent charge in possession."

[16th June 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Saving of
beneficial
interests.
15 & 16
Geo. 5. c. 18.
15 & 16
Geo. 5. c. 20.
16 & 17
Geo. 5. c. 11.

1.—(1) At the end of subsection (6) of section thirty-six of the Settled Land Act, 1925, and at the end of section thirty-five of the Law of Property Act, 1925, and before the provision added to that section by the Law of Property (Amendment) Act, 1926, the following words shall, in each case, be inserted, namely :—

“ and the right of a person who, if the land had not been made subject to a trust for sale by virtue of this Act, would have been entitled to an entailed interest in an undivided share in the land, shall be deemed to be a right to a corresponding entailed interest in the net proceeds of sale attributable to that share.”

(2) This section shall be deemed to have come into operation on the first day of January, nineteen hundred and twenty-six, but shall have effect without prejudice to any order of the court made before the date of the passing of this Act, or to any title acquired by a purchaser for money or money's worth before that date.

Definition
of rent
charge.

2. For removing doubt it is hereby declared that a rent charge (not being a rent charge limited to take effect in remainder after or expectant on the failure or determination of some other interest) is a rent charge in possession within the meaning of paragraph (b) of subsection (2) of section one of the Law of Property Act, 1925, notwithstanding that the payments in respect

thereof are limited to commence or accrue at some time subsequent to its creation.

3.—(1) This Act may be cited as the Law of Property (Entailed Interests) Act, 1932, and so far as it amends any Act shall be construed as one with that Act. Short title and construction.

(2) The Law of Property Acts, 1925 to 1929, and this Act, so far as it amends those Acts, may be cited together as the Law of Property Acts, 1925 to 1932.

CHAPTER 28.

An Act to enable local authorities to provide or contribute towards the provision of means for cleansing shell-fish. [16th June 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

- 1.**—(1) It shall be lawful for any of the following authorities, namely— Provision of means for cleansing shell-fish.
- (a) a county council;
 - (b) a local authority within the meaning of the Public Health Acts, 1875 to 1926;
 - (c) a sanitary authority within the meaning of the Public Health (London) Acts, 1891 to 1926;

to provide tanks or other apparatus for cleansing shell-fish (together with all works and appliances necessary for the proper use thereof) and to make, in respect of the use of any tank or other apparatus so provided, such reasonable charges as the authority may determine.

(2) Any of the authorities aforesaid may contribute, on such terms as may be agreed, towards the expenses incurred in pursuance of this Act by any other of the authorities aforesaid or by a joint committee of any of the authorities aforesaid, or towards expenses incurred by any other person in providing, and making available to the public, means for cleansing shell-fish.